

SOLVED PRACTICE WORKBOOK

Making of the Constitution - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Making of the Constitution - Solved Practice Workbook

This section contains exactly **32 original MCQs/drills** before the reproduced PYQ block. Questions 25-32 provide synthesis and remedial control.

BASIC MCQS / REMEDIATION

Rotation and coverage

- Original objective count: **32**.
- Correct-option sequence: ABCDABCDABCDABCDABCDABCDABCDABCD.
- Formats include chronology, statement sets, assertion-reason, matching, role differentiation, source reconciliation, legal application and analytical inference.

Q1. Which sequence most accurately traces the political demand for an Indian constitution-making body?

A. M.N. Roy's proposal (1934) -> Congress demand (1935) -> Nehru's adult-franchise formulation (1938) -> August Offer (1940) B. Congress demand (1934) -> M.N. Roy's proposal (1935) -> Cripps Mission (1938) -> August Offer (1942) C. Nehru's adult-franchise formulation (1934) -> Congress demand (1938) -> Cabinet Mission (1940) -> Cripps Mission (1946) D. August Offer (1934) -> Congress demand (1935) -> M.N. Roy's proposal (1940) -> Cabinet Mission (1942)

Answer: A.

- **A - Correct.** This sequence separates the first individual proposal, the Congress's official demand, Nehru's democratic formulation and Britain's later acceptance in principle.
- **B - Incorrect.** Congress did not precede Roy, and the Cripps Mission belongs to 1942 rather than 1938.
- **C - Incorrect.** Nehru's adult-franchise statement came in 1938; the August Offer, not the Cabinet Mission, belongs to 1940.
- **D - Incorrect.** The August Offer did not occur in 1934, and Roy's proposal preceded rather than followed the Congress demand.

Examiner trap: Do not collapse 'first proposed', 'officially demanded', 'defined through adult franchise' and 'accepted in principle' into one event.

Q2. Jawaharlal Nehru's 1938 formulation added which democratic condition to the Congress demand?

A. Nomination of all members by provincial Governors B. Election of the Assembly on adult franchise without outside interference C. Two separate constituent assemblies for India and Pakistan D. A constitution enacted directly by the British Parliament

Answer: B.

- **A - Incorrect.** Governor nomination would have preserved colonial control and was not Nehru's democratic condition.
- **B - Correct.** Nehru linked a free Indian Constitution to a Constituent Assembly elected on adult franchise and free from external interference.
- **C - Incorrect.** The demand for two constituent assemblies was associated with the Muslim League's response to the Cripps proposals.
- **D - Incorrect.** Nehru's formulation rejected constitution-making by Westminster and asserted Indian constituent authority.

Examiner trap: The 1938 statement described the desired democratic basis; it did not describe the restricted indirect method actually used in 1946.

Q3. Which British initiative first accepted the principle that Indians would frame a new constitutional order?

A. Government of India Act 1935 B. Cripps proposals 1942 C. August Offer 1940 D. Indian Independence Act 1947

Answer: C.

- **A - Incorrect.** The 1935 Act supplied an imperial constitutional framework but did not concede an Indian constituent assembly.
- **B - Incorrect.** Cripps later proposed post-war constitution-making, but the principle had already been accepted in the August Offer.
- **C - Correct.** The August Offer marked acceptance in principle, although it did not itself constitute the Assembly.
- **D - Incorrect.** The Independence Act altered the legal sovereignty of an Assembly that had already begun work.

Examiner trap: Acceptance in principle in 1940 is different from an operative formation scheme in 1946 and sovereign authority in 1947.

Q4. Which comparison between the Cripps proposals and the Cabinet Mission is correct?

A. Both created two sovereign constituent assemblies immediately. B. Cripps rejected post-war constitution-making, while the Cabinet Mission restored British parliamentary drafting. C. The Cabinet Mission accepted the League's demand for two constituent assemblies. D. Cripps envisaged post-war constitution-making; the Cabinet Mission rejected two assemblies and supplied the operative scheme for one Assembly.

Answer: D.

- **A - Incorrect.** Neither initiative immediately created two sovereign assemblies; that reverses the Cabinet Mission's position.
- **B - Incorrect.** Cripps did contemplate constitution-making, and the Cabinet Mission proposed an Indian Assembly rather than Westminster drafting.
- **C - Incorrect.** The Cabinet Mission did not concede the League's two-assembly demand.
- **D - Correct.** This distinguishes a wartime proposal from the 1946 institutional scheme under which the Assembly was constituted.

Examiner trap: Questions often combine a true Cripps feature with a false Cabinet Mission consequence; test each mission separately.

Q5. Under the Cabinet Mission plan, the original strength of 389 was composed of:

A. 296 seats for British India and 93 for princely states B. 299 provincial seats and 90 princely-state seats C. 292 provincial seats and 97 princely-state seats D. 229 provincial seats and 160 princely-state seats

Answer: A.

- **A - Correct.** The planned total was 389: 296 for British India, including 292 Governors' provinces and four Chief Commissioners' provinces, plus 93 princely-state seats.
- **B - Incorrect.** 299 was the reconstituted total after Partition, not the original provincial allocation.
- **C - Incorrect.** 292 counted Governors' province seats alone and omitted the four Chief Commissioners' province seats.
- **D - Incorrect.** 229 was the post-Partition provincial component; 160 was never the corresponding states allocation.

Examiner trap: Break 389 into 296 plus 93, and then break 296 into 292 plus four; do not mix original and post-Partition denominators.

Q6. How were representatives from a British Indian province chosen under the Cabinet Mission scheme?

A. By direct universal adult suffrage in territorial constituencies B. By members of the relevant community in the provincial legislature through proportional representation by single transferable vote C. By nomination of the provincial Governor from community panels D. By election in a joint sitting of the Central Legislative Assembly and Council of State

Answer: B.

- **A - Incorrect.** Universal adult suffrage was not the selection basis; provincial legislators themselves came from a restricted franchise.
- **B - Correct.** Community members in provincial legislative assemblies elected their allotted representatives by PR-STV, making the process indirect.
- **C - Incorrect.** Governor nomination was not the Cabinet Mission method for British Indian provincial seats.
- **D - Incorrect.** The central colonial legislature did not elect provincial Constituent Assembly representatives.

Examiner trap: PR-STV describes the vote among provincial legislators; it does not convert the process into a direct popular election.

Q7. Which statement handles the first-sitting attendance figure most responsibly?

A. All 389 planned members attended on 9 December 1946. B. The figure 211 is an uncontested official attendance total. C. The official first-session record reports 207 present, while an older local Laxmikanth edition prints 211; the source difference should be disclosed. D. No attendance figure can be used because the Muslim League boycotted the meeting.

Answer: C.

- **A - Incorrect.** 389 was the original planned strength, not attendance at the opening sitting.
- **B - Incorrect.** The older Sixth Revised Edition gives 211, but the official register-based account and newer courseware give 207.
- **C - Correct.** This formulation uses the official 207 figure while preserving the documented textbook variance instead of pretending unanimity.
- **D - Incorrect.** The boycott explains reduced attendance but does not prevent use of the official register count.

Examiner trap: Treat membership strength, possible participation and actual signatures in the attendance register as different measures.

Q8. After Partition, the reconstituted Assembly had:

A. 284 members: 229 provincial and 55 princely-state representatives B. 299 members: 296 provincial and three princely-state representatives C. 389 members because Partition did not alter the Assembly D. 299 members: 229 provincial and 70 princely-state representatives

Answer: D.

- **A - Incorrect.** 284 is the number commonly recorded as signatories, not the sanctioned post-Partition strength.
- **B - Incorrect.** The provincial component fell to 229; it did not remain 296.
- **C - Incorrect.** Members from territories assigned to Pakistan withdrew, so the original 389 did not survive Partition.
- **D - Correct.** The post-Partition total was 299, consisting of 229 provincial and 70 princely-state seats.

Examiner trap: Use 299 for reconstituted strength and 284 for signatories; the two figures answer different questions.

Q9. Which pairing of presiding officers is correct?

A. Temporary President: Sachchidananda Sinha; permanent President: Rajendra Prasad B. Temporary President: Rajendra Prasad; permanent President: G.V. Mavlankar C. Temporary President: B.N. Rau; permanent President: B.R. Ambedkar D. Temporary President: H.C. Mookherjee; permanent President: V.T. Krishnamachari

Answer: A.

- **A - Correct.** Sinha presided temporarily at the opening as the oldest member; Rajendra Prasad was elected permanent President on 11 December 1946.
- **B - Incorrect.** Rajendra Prasad was the permanent constituent presiding officer, while Mavlankar chaired legislative business after independence.
- **C - Incorrect.** Rau was Constitutional Adviser and Ambedkar chaired the Drafting Committee; neither held this pair of offices.
- **D - Incorrect.** Mookherjee and Krishnamachari served as Vice-Presidents, not temporary and permanent Presidents.

Examiner trap: The phrase 'Provisional President' in the 2024 PYQ refers to the opening temporary presiding officer, not the Dominion legislature's chair.

Q10. The Objectives Resolution was moved and adopted respectively on:

A. 9 December 1946 and 11 December 1946 B. 13 December 1946 and 22 January 1947 C. 22 January 1947 and 29 August 1947 D. 4 November 1948 and 26 November 1949

Answer: B.

- **A - Incorrect.** These dates concern the first sitting and Rajendra Prasad's election, not the Resolution.
- **B - Correct.** Nehru moved the Resolution on 13 December 1946, and the Assembly adopted it on 22 January 1947.
- **C - Incorrect.** 22 January was the adoption date, while 29 August was the Drafting Committee's appointment.
- **D - Incorrect.** These dates concern introduction of the Draft Constitution and final adoption.

Examiner trap: Keep three Nehru-related milestones separate: 1938 democratic formulation, 13 December 1946 motion and 22 January 1947 adoption.

Q11. Consider the Objectives Resolution: 1. Authority was to be derived from the people. 2. It promised safeguards for minorities and backward and tribal areas. 3. It contained the final words 'socialist' and 'secular'. Which are correct?

A. 1 only B. 2 and 3 only C. 1 and 2 only D. 1, 2 and 3

Answer: C.

- **A - Incorrect.** Statement 1 is correct, but statement 2 is also part of the Resolution's safeguards commitment.
- **B - Incorrect.** Statement 2 is correct, but statement 3 imports words added to the Preamble by the 42nd Amendment in 1976.
- **C - Correct.** The Resolution grounded authority in the people and promised safeguards; it did not contain the later amended Preamble verbatim.
- **D - Incorrect.** Including statement 3 makes the combination incorrect because 'socialist' and 'secular' were not part of the 1947 Resolution's final constitutional wording.

Examiner trap: A value may be implicit in the founding debate without the exact later constitutional word appearing in the 1947 Resolution.

Q12. Assertion (A): The Assembly should not be described as fully sovereign from its first meeting. Reason (R): The Indian Independence Act 1947 later removed external legal subordination. Choose the correct answer.

A. Both A and R are true, but R does not explain A B. A is true, but R is false C. A is false, but R is true D. Both A and R are true, and R explains why sovereignty must be periodised

Answer: D.

- **A - Incorrect.** The reason directly explains the time-sensitive distinction, so denying the explanatory link is incorrect.
- **B - Incorrect.** The Independence Act did alter the Assembly's legal position, making the reason true.
- **C - Incorrect.** The assertion is also true because the Assembly's December 1946 origin remained within a British-devised framework.
- **D - Correct.** The Act marks the change from a constrained legal origin to a sovereign constituent and legislative body.

Examiner trap: Do not use a static label for sovereignty; specify whether the answer concerns December 1946 or the post-Independence Assembly.

Q13. After independence, which institutional pairing was correct?

A. Constituent business under Rajendra Prasad; Dominion-legislative business under G.V. Mavlankar B. Constituent business under Mavlankar; Dominion-legislative business under Ambedkar C. Both functions under Sachchidananda Sinha until 1950 D. Both functions under B.N. Rau because he was Constitutional Adviser

Answer: A.

- **A - Correct.** The Assembly performed two roles on separate days: Rajendra Prasad chaired constitution-making, while Mavlankar chaired ordinary legislative business.
- **B - Incorrect.** Mavlankar did not chair the constituent function, and Ambedkar's Drafting Committee role was different from legislative presiding authority.
- **C - Incorrect.** Sinha's temporary presidency belonged to the first sitting in December 1946.
- **D - Incorrect.** Rau advised on constitutional design but did not preside over either institutional capacity.

Examiner trap: A single Assembly could exercise two capacities without having the same presiding officer in both.

Q14. Which committee-chair combination is correctly matched?

A. Union Powers Committee - Vallabhbhai Patel B. Provincial Constitution Committee - Vallabhbhai Patel C. States Committee - Rajendra Prasad D. Rules of Procedure Committee - B.R. Ambedkar

Answer: B.

- **A - Incorrect.** Nehru, not Patel, chaired the Union Powers Committee.
- **B - Correct.** Patel chaired the Provincial Constitution Committee as well as the parent Advisory Committee.
- **C - Incorrect.** Nehru chaired the States Committee for negotiations with princely states.
- **D - Incorrect.** Rajendra Prasad chaired the Rules of Procedure Committee; Ambedkar chaired Drafting.

Examiner trap: Memorise committee clusters by function: Nehru-Union/states, Patel-provinces/safeguards, Prasad-procedure, Ambedkar-drafting.

Q15. Which subcommittee pairing is correct?

A. Fundamental Rights - H.C. Mookherjee B. Minorities - J.B. Kripalani C. Assam tribal and excluded areas - Gopinath Bardoloi D. Excluded areas outside Assam - Jawaharlal Nehru

Answer: C.

- **A - Incorrect.** J.B. Kripalani chaired the Fundamental Rights Sub-Committee.
- **B - Incorrect.** H.C. Mookherjee chaired the Minorities Sub-Committee.
- **C - Correct.** Gopinath Bardoloi chaired the North-East Frontier/Assam tribal and excluded areas subcommittee.
- **D - Incorrect.** A.V. Thakkar, not Nehru, chaired the subcommittee for excluded and partially excluded areas outside Assam.

Examiner trap: Distinguish Patel's parent Advisory Committee from the four named specialist subcommittees beneath it.

Q16. Which sequence best represents distributed constitutional authorship?

A. Ambedkar alone -> final text -> ceremonial Assembly approval B. B.N. Rau -> British Parliament -> Indian referendum C. Provincial Governors -> Drafting Committee -> Privy Council D. Subject committees and Rau's advice -> Drafting Committee -> plenary debate, amendment and adoption

Answer: D.

- **A - Incorrect.** Ambedkar's leadership was exceptional, but committees, advisers and plenary votes prevent a solitary-authorship account.
- **B - Incorrect.** Rau advised the Indian process; Westminster and a referendum were not the adoption route.
- **C - Incorrect.** Provincial Governors and the Privy Council were not links in the Assembly's drafting-authorisation chain.
- **D - Correct.** This sequence attributes principle-setting, technical preparation, legal drafting and final authority to their proper institutions.

Examiner trap: Giving Ambedkar full credit for leadership does not require erasing Rau, committees, technical draftsmen or the Assembly's final vote.

Q17. Which statement about the Drafting Committee's membership is correct?

A. B.L. Mitter and D.P. Khaitan were original members; N. Madhava Rau and T.T. Krishnamachari later replaced them respectively B. B.N. Rau was one of the seven members and was replaced by S.N. Mukerjee C. Rajendra Prasad chaired the Committee while Ambedkar served as Constitutional Adviser D. The Committee began with nine members and was reduced to seven after Partition

Answer: A.

- **A - Correct.** Mitter resigned because of ill health and was replaced by N. Madhava Rau; Khaitan died and was replaced by T.T. Krishnamachari.
- **B - Incorrect.** B.N. Rau was Constitutional Adviser and S.N. Mukerjee Chief Draftsman; neither was paired as member and replacement.
- **C - Incorrect.** Ambedkar chaired the Drafting Committee, while Rau supplied constitutional advice.
- **D - Incorrect.** The standard committee was appointed with seven members; its size was not a Partition reduction from nine.

Examiner trap: Replacement questions test membership, not importance: Rau and Mukerjee were crucial but were not the two replacement members.

Q18. Which distinction between B.N. Rau and B.R. Ambedkar is most accurate?

A. Rau adopted the Constitution; Ambedkar merely calligraphed it B. Rau was Constitutional Adviser and prepared comparative/adviser material; Ambedkar chaired the Drafting Committee and piloted the Draft C. Rau chaired the Assembly; Ambedkar chaired the Dominion legislature D. Both performed identical offices at different dates

Answer: B.

- **A - Incorrect.** Adoption belonged to the Assembly, and Prem Behari Narain Raizada performed the English calligraphy.
- **B - Correct.** The distinction correctly separates advisory preparation from committee leadership and defence of the Draft in the Assembly.
- **C - Incorrect.** Rajendra Prasad chaired constituent business and G.V. Mavlankar legislative business.
- **D - Incorrect.** Their contributions were complementary but institutionally different, not the same office in succession.

Examiner trap: Use three verbs to prevent role confusion: Rau advised, Ambedkar chaired and piloted, the Assembly authorised.

Q19. Arrange the drafting milestones in chronological order: 1. Revised Draft published. 2. Drafting Committee appointed. 3. First public Draft published. 4. Ambedkar introduced the Draft in the Assembly.

A. 3-2-1-4 B. 2-1-3-4 C. 2-3-1-4 D. 1-2-4-3

Answer: C.

- **A - Incorrect.** The Committee had to be appointed before it could publish the first Draft.
- **B - Incorrect.** This places the revised Draft before the first public Draft.
- **C - Correct.** The correct order is 29 August 1947, February 1948, October 1948 and 4 November 1948.
- **D - Incorrect.** The October 1948 revision could not precede the Committee's appointment or follow Assembly introduction in this sequence.

Examiner trap: Do not confuse the adviser's preparatory draft with the Drafting Committee's February and October 1948 public texts.

Q20. Which sequence correctly distinguishes the final constitutional stages?

A. Signing 26 November 1949 -> adoption 24 January 1950 -> commencement 26 January 1950 B. Adoption and commencement 26 November 1949 -> signing 26 January 1950 C. Commencement 24 January 1950 -> adoption 26 January 1950 -> signing later D. Adoption 26 November 1949 -> signing 24 January 1950 -> general commencement 26 January 1950

Answer: D.

- **A - Incorrect.** The first two events are reversed: adoption preceded the 24 January signing.
- **B - Incorrect.** Most provisions did not commence on adoption day, and signing did not occur on Republic Day.
- **C - Incorrect.** 24 January was the signing/final-session date, not the date of general commencement.
- **D - Correct.** This sequence preserves three legally and historically distinct events.

Examiner trap: Any option that uses one date for adoption, signature and commencement is presumptively unsafe.

Q21. Article 393 of the Constitution deals with:

A. The short title, 'Constitution of India' B. The split commencement of constitutional provisions C. Repeal of the 1935 and 1947 Acts D. The authoritative Hindi text

Answer: A.

- **A - Correct.** Article 393 states the Constitution's short title.
- **B - Incorrect.** Split commencement is governed by Article 394.
- **C - Incorrect.** The specified repeal provision is Article 395.
- **D - Incorrect.** The authoritative Hindi text was later provided through Article 394A by the 58th Amendment.

Examiner trap: The final Part's article numbers are consecutive but not interchangeable: 393 title, 394 commencement, 395 repeals.

Q22. What is the controlling rule in Article 394?

A. Every provision commenced only on 26 January 1950 B. Article 394 and specified transitional provisions commenced at once; the remainder commenced on 26 January 1950 C. The Constitution commenced when 284 members signed it D. Commencement depended on a later presidential notification

Answer: B.

- **A - Incorrect.** Specified citizenship, election, transitional and final provisions operated from 26 November 1949.
- **B - Correct.** Article 394 creates the two-stage commencement and calls 26 January 1950 the commencement of the Constitution.
- **C - Incorrect.** Signing on 24 January was historically important but was not the legal trigger under Article 394.
- **D - Incorrect.** The constitutional text itself fixed the dates; no later notification was required for general commencement.

Examiner trap: Adoption brought named provisions into force immediately, not the whole Constitution and not none of it.

Q23. Article 395 expressly repealed:

A. Only the Indian Independence Act 1947 B. The Abolition of Privy Council Jurisdiction Act 1949 C. The Indian Independence Act 1947 and the Government of India Act 1935 with enactments amending or supplementing the latter D. Every colonial-era statute still in force

Answer: C.

- **A - Incorrect.** Article 395 also repealed the 1935 Act and its amending or supplementing enactments.
- **B - Incorrect.** The 1949 Privy Council jurisdiction statute was expressly not swept away by this repeal account.
- **C - Correct.** This follows the constitutional text and states the relationship to the 1935 Act precisely.
- **D - Incorrect.** The Constitution did not automatically repeal every pre-1950 statute; legal continuity operated subject to constitutional control.

Examiner trap: A sweeping 'all British laws were repealed' option ignores constitutional continuity and Article 372.

Q24. Which statement about immediate commencement on 26 November 1949 is correct?

A. Only the Preamble commenced; all Articles waited until Republic Day B. Only citizenship provisions commenced; election and transitional provisions waited C. All 395 Articles commenced because the Constitution had been adopted D. Article 394 itself and its named citizenship, election, transitional and final provisions commenced at once; the remainder waited until 26 January 1950

Answer: D.

- **A - Incorrect.** The immediate set was wider than the Preamble and included named Articles.
- **B - Incorrect.** Article 324 and several transitional/final provisions were also in the immediate set.
- **C - Incorrect.** Adoption did not produce general commencement of the entire constitutional text.

- **D - Correct.** The exact Article 394 list includes Articles 5-9, 60, 324, 366, 367, 379, 380, 388, 391-393, together with Article 394 itself.

Examiner trap: Count only if the question requires it; the safer rule is named immediate provisions versus the remaining provisions on 26 January.

Q25. Which event-date pair is correct?

A. National Flag adopted - 22 July 1947 B. Commonwealth membership ratified - 26 January 1950 C. National Anthem adopted - 26 November 1949 D. Rajendra Prasad elected first President - 15 August 1947

Answer: A.

- **A - Correct.** The Assembly adopted the National Flag on 22 July 1947.
- **B - Incorrect.** It ratified continued Commonwealth membership in May 1949.
- **C - Incorrect.** The National Anthem and National Song decisions belong to 24 January 1950.
- **D - Incorrect.** Rajendra Prasad was elected the first President on 24 January 1950.

Examiner trap: The Assembly performed non-drafting functions on several dates; do not attach all national symbols to adoption day.

Q26. Which pairing correctly identifies constitutional craft?

A. B.N. Rau - English calligraphy B. Prem Behari Narain Raizada - English calligraphy C. S.N. Mukerjee - artistic decoration under Shantiniketan D. Nandalal Bose - Constitutional Adviser

Answer: B.

- **A - Incorrect.** Rau supplied constitutional advice and comparative preparation, not manuscript calligraphy.
- **B - Correct.** Prem Behari Narain Raizada hand-calligraphed the English original in an italic style.
- **C - Incorrect.** Mukerjee was the chief draftsman responsible for technical legislative language.
- **D - Incorrect.** Nandalal Bose led the Shantiniketan artistic team rather than advising on constitutional law.

Examiner trap: Separate legal authorship, technical drafting, calligraphy and visual decoration; each belongs to a different role.

Q27. Which metric statement is source-disciplined?

A. The Drafting Committee sat for 165 days and the Assembly for 141 days. B. All sources give exactly 2 years, 11 months and 18 days with no variation. C. Sansad records 11 sessions, 165 sitting days and 114 Draft-debate days; Laxmikanth records 141 Drafting Committee days, while elapsed-duration wording differs by one day across sources. D. The Rs 64 lakh cost is a current-price estimate certified by the Comptroller and Auditor General.

Answer: C.

- **A - Incorrect.** The figures are reversed: 165 is the Assembly sitting-day total and 141 is the Drafting Committee figure.
- **B - Incorrect.** Sansad's facts page states seventeen days, while the local standard textbook states eighteen days.
- **C - Correct.** This answer preserves each denominator and explicitly discloses the one-day source variation.
- **D - Incorrect.** Rs 64 lakh is a commonly recorded historical nominal textbook figure, not a modern CAG-certified valuation.

Examiner trap: Never merge sessions, Assembly sitting days, Draft-debate days, Drafting Committee days and elapsed calendar duration.

Q28. Which formulation best answers the charge that the Constitution was merely borrowed?

A. Foreign sources make the Constitution legally invalid. B. Every provision has one exclusive foreign source. C. The Government of India Act 1935 was copied without democratic transformation. D. The framers selected and recombined comparative devices under a written supreme Constitution, popular sovereignty and Indian social-federal conditions.

Answer: D.

- **A - Incorrect.** Comparative borrowing does not determine legal validity; constituent adoption and constitutional supremacy do.
- **B - Incorrect.** Many institutions have mixed lineages, so exclusive one-country attribution overstates certainty.
- **C - Incorrect.** Administrative continuity was substantial, but rights, franchise, accountability and the source of authority were transformed.
- **D - Correct.** This formulation tests adaptation and integration rather than treating foreign origin as self-proving imitation.

Examiner trap: A source list earns few marks unless each borrowed technique is linked to its altered Indian function.

Q29. Which inference best evaluates the Assembly's representativeness?

A. Its electoral mandate was limited, but social participation, committee deliberation and the universal franchise it created support qualified legitimacy B. Indirect election automatically made every Assembly decision illegitimate C. The presence of several communities proves perfect proportional representation D. Congress dominance is irrelevant because all votes were unanimous

Answer: A.

- **A - Correct.** This verdict concedes restricted indirect election while separately assessing social range, deliberation and prospective democratisation.
- **B - Incorrect.** A democratic deficit is significant, but automatic invalidity ignores post-1947 sovereignty and institutional deliberation.
- **C - Incorrect.** Presence is not the same as proportional equality, especially after boycott and Partition.
- **D - Incorrect.** Congress dominance was real, and consensus did not mean the absence of dissent or unequal influence.

Examiner trap: Representation must be tested on at least three axes: electoral mandate, social-political inclusion and deliberative output.

Q30. Which statement most accurately periodises the Assembly's sovereignty?

A. It remained legally subordinate to Westminster until 26 January 1950 B. Its British-framed origin constrained it in 1946, but the Indian Independence Act 1947 removed external legal subordination C. It was fully sovereign solely because Congress won 208 seats D. The Objectives Resolution itself repealed British constitutional statutes

Answer: B.

- **A - Incorrect.** The Independence Act changed the legal position before general constitutional commencement.
- **B - Correct.** This answer distinguishes the source of the Assembly's origin from its later power to frame and repeal without British veto.
- **C - Incorrect.** Party strength explains political dominance, not the legal source of constituent sovereignty.
- **D - Incorrect.** The Resolution stated values; it was not a repeal statute.

Examiner trap: Legal sovereignty and democratic representativeness are related but distinct tests; answer each with different evidence.

Q31. Which set of named contributions is correctly stated?

A. Hansa Mehta chaired Drafting; Dakshayani Velayudhan was Constitutional Adviser B. Begum Aizaz Rasul defended separate electorates; H.C. Mookherjee opposed minority safeguards C. Hansa Mehta advanced equality concerns, Dakshayani Velayudhan spoke from a Dalit woman's perspective, and Begum Aizaz Rasul opposed separate electorates D. Women members performed only ceremonial functions and did not intervene in substantive debates

Answer: C.

- **A - Incorrect.** Ambedkar chaired Drafting and B.N. Rau was Constitutional Adviser; the named women made different substantive interventions.
- **B - Incorrect.** Aizaz Rasul opposed separate electorates, while Mookherjee chaired the Minorities Sub-Committee.
- **C - Correct.** The three examples show that women and minority participation must be analysed through concrete interventions rather than symbolic presence alone.
- **D - Incorrect.** The record includes substantive interventions on equality, untouchability, minority citizenship, language, welfare and social reform.

Examiner trap: Do not answer inclusion by listing names only; connect each member to the issue on which she or he intervened.

Q32. How should Constituent Assembly Debates be used in constitutional interpretation?

A. As binding law that can override enacted wording B. As irrelevant political speeches that courts can never consult C. As a complete substitute for later precedent and structural interpretation D. As persuasive historical aids where purpose or ambiguity matters, subordinate to text, structure and binding doctrine

Answer: D.

- **A - Incorrect.** An individual speech cannot displace the provision finally enacted by the Assembly.
- **B - Incorrect.** Courts and scholars may consult the debates to illuminate purpose, especially where language is ambiguous.
- **C - Incorrect.** Later constitutional doctrine, including Article 21 and basic-structure jurisprudence, cannot be replaced by a frozen historical statement.
- **D - Correct.** This approach captures both the evidentiary value and the legal limit of founding-era debates.

Examiner trap: Avoid both extremes: framers' speeches are neither binding commands nor useless historical decoration.

PYQS AND ANSWER PRACTICE

Objective PYQ provenance and key discipline

- Reproduced objective PYQs: **4**, all directly routed to this topic.
- A letter is printed only for the locally held final official 2024 Set-A key.
- The 2021 and 2023 local official papers have no locally available final official key.
- The 2026 local key is explicitly provisional and is not promoted to final status.
- Direct owned Mains PYQs in the audited 2018-2025 GS-I/GS-II ledgers: **0**; none is invented.

PYQ 1 - 2021 Prelims GS-I Q93

Question: What was the exact constitutional status of India on 26th January, 1950?

A. A Democratic Republic B. A Sovereign Democratic Republic C. A Sovereign Secular Democratic Republic D. Sovereign Socialist Secular Democratic Republic

Answer withheld pending official UPSC key.

Concept analysis: The Constitution generally commenced on 26 January 1950. The original Preamble used the words sovereign democratic republic; socialist and secular were inserted by the 42nd Amendment in 1976. Continued Commonwealth membership did not preserve Dominion status.

Elimination trap: Test the wording against the original 1950 Preamble, not today's amended Preamble.

Provenance/status: Exact official 2021 Set-A paper verified locally; final official key unavailable locally.

PYQ 2 - 2023 Prelims GS-I Q85

Question: Statement I: Constitution Day is celebrated on 26 November every year to promote constitutional values among citizens. Statement II: On 26 November 1949, the Constituent Assembly set up a Drafting Committee under B.R. Ambedkar to prepare a Draft Constitution.

A. Both statements are correct and Statement II explains Statement I B. Both statements are correct but Statement II does not explain Statement I C. Statement I is correct but Statement II is incorrect D. Statement I is incorrect but Statement II is correct

Answer withheld pending official UPSC key.

Concept analysis: Constitution Day is tied to adoption on 26 November 1949. The Drafting Committee was appointed earlier, on 29 August 1947. Evaluate each statement independently before testing the explanatory relationship.

Elimination trap: A correct commemoration date cannot rescue a false institutional event attached to the same date.

Provenance/status: Exact official 2023 paper verified locally; final official key unavailable locally.

PYQ 3 - 2024 Prelims GS-I Q61

Question: Who was the Provisional President of the Constituent Assembly before Dr Rajendra Prasad took over?

A. C. Rajagopalachari B. Dr B.R. Ambedkar C. T.T. Krishnamachari D. Dr Sachchidananda Sinha

Answer: D.

Official-key analysis: The locally held final official UPSC Set-A key records D. Sachchidananda Sinha, the oldest member, presided temporarily at the opening; Rajendra Prasad was elected permanent President.

Elimination trap: 'Provisional' here means temporary presiding officer, not provisional Parliament.

Provenance/status: Exact official 2024 Set-A paper and final official Set-A key verified locally.

PYQ 4 - 2026 Prelims GS-I Q55

Question, locally normalised: Consider the following statements with reference to the Constitution of India:

1. No Article specifies that it will officially be called the Constitution of India.
2. No Article specifies that the Indian Independence Act 1947 and Government of India Act 1935 stand repealed.
3. No Article mentions 26 January 1950 as the date of commencement.

A. There are two correct statements that include Statement 3 B. There is only one correct statement C. All three statements are correct D. There is no correct statement

Answer withheld pending official UPSC key.

Concept analysis: Article 393 supplies the short title, Article 394 specifies the split commencement and Article 395 specifies the repeals. The repository key is provisional and conflicts with the straightforward constitutional-text reading, so no answer letter is promoted.

Elimination trap: Negative-statement questions require checking each proposition directly against the constitutional text before counting.

Provenance/status: Exact official 2026 Set-A paper verified locally; only a provisional local key is available.

Direct Mains PYQ audit

No direct owned Mains PYQ was found in the audited local GS-I/GS-II routing ledgers for 2018-2025. None is invented or imported from an adjacent owner.

Six original Mains questions with full model answers

Original Q1 - 10 marks / 150 words

Question: Assess the role of the Objectives Resolution in the making of the Constitution. Answer in 150 words.

Demand: Explain function and significance, not merely list its clauses.

Model answer: The Objectives Resolution was the Assembly's value framework before the constitutional machinery was finalised. Nehru introduced it on 13 December 1946 and the Assembly adopted it on 22 January 1947. It located authority in the people, envisaged an independent sovereign republic, and committed the future order to justice, equality, freedom, safeguards for minorities and tribal or backward areas, territorial integrity and world peace.

Its importance was institutional. Subject committees and the Drafting Committee could disagree about federal, executive or rights mechanisms, but they worked within a publicly declared normative horizon. Its modified form became the Preamble, giving continuity between nationalist constitutional aspiration and the enacted Constitution. The Resolution was not itself the final constitutional text: its language was modified, and later doctrine must be grounded in the Preamble and operative provisions. It was therefore the value bridge from political freedom to constitutional identity.

Why this earns marks: It gives dates, named value content, causal process significance and a precise limitation.

How to improve this answer: Add one explicit Preamble phrase and a one-line Resolution-to-Preamble comparison to make the value-to-text conversion visually undeniable.

Original Q2 - 10 marks / 150 words

Question: Differentiate the role of B.N. Rau from that of the Drafting Committee in Indian constitution-making. Answer in 150 words.

Demand: Compare functions and preserve the Assembly's final authority.

Model answer: B.N. Rau and the Drafting Committee occupied successive but distinct stages. As Constitutional Adviser, Rau organised comparative research, advised committees and prepared an initial adviser draft in 1947. His work widened the menu of constitutional techniques and converted committee materials into a preliminary legal architecture.

The seven-member Drafting Committee, appointed on 29 August 1947 under B.R. Ambedkar, scrutinised that material, reconciled committee decisions and prepared the Draft Constitution published in February 1948 and revised in October 1948. Ambedkar then introduced and defended the Draft in the Assembly. S.N. Mukerjee supplied technical legislative drafting.

Neither Rau nor the Committee possessed final constituent authority. The plenary Assembly debated clauses, moved amendments and adopted the Constitution on 26 November 1949. Rau prepared and advised; the Committee legally integrated and piloted; the Assembly authorised. This differentiation credits Ambedkar's exceptional leadership without reducing a distributed process to solitary authorship.

Why this earns marks: It compares role, chronology, named evidence, institutional boundaries and final authorship.

How to improve this answer: Use a three-column Rau-Drafting Committee-Assembly table in rough work, then retain one action verb for each: advised, integrated/piloted, authorised.

Original Q3 - 15 marks / 250 words

Question: Critically examine the representative and sovereign character of the Constituent Assembly. Answer in 250 words.

Demand: Evaluate two distinct tests across time and end with a graded verdict.

Model answer: The Assembly's representative and sovereign character cannot be answered with one label. Under the Cabinet Mission scheme, its planned strength was 389: 296 British Indian and 93 princely-state seats. Provincial representatives were indirectly elected by community members of provincial assemblies through proportional representation by single transferable vote; princes nominated state representatives. The underlying provincial franchise was restricted. Congress won 208 of 296 seats, the Muslim League won 73, and the League boycotted the first sitting. These facts establish a real electoral and political deficit.

Representation nevertheless had a deliberative dimension. The Assembly included religious minorities, Scheduled Castes, tribal members and women; specialist committees created channels on rights, minorities and excluded areas. Congress itself contained competing ideological and provincial tendencies. The prospective democratic answer was stronger still: universal adult franchise made the polity far more representative than the founding body's electorate.

Sovereignty changed over time. The Cabinet Mission and British legal framework shaped the origin, so the criticism had force in December 1946. The Indian Independence Act 1947, however, removed external legal subordination, empowered the Assembly to frame any Constitution and repeal British statutes, and added legislative capacity.

The Assembly was therefore not fully representative by modern electoral standards and was not equally sovereign at every stage. Yet post-1947 legal sovereignty, plural deliberation and universal-franchise output gave it qualified founding legitimacy.

Why this earns marks: It separates the two directives, periodises sovereignty, concedes defects and links evidence to a balanced verdict.

How to improve this answer: Add the official 207-person first-session register figure, note the older textbook's 211 variance only if relevant, and keep 284 strictly for signatories.

Original Q4 - 15 marks / 250 words

Question: Explain how committee government strengthened the deliberative process of the Constituent Assembly. Answer in 250 words.

Demand: Show mechanism, evidence, benefit and limitation.

Model answer: Committee government converted a vast and conflict-ridden constitutional agenda into specialised, negotiable and draftable units. Nehru's Union Powers and Union Constitution Committees framed central architecture; Patel's Provincial Constitution and Advisory Committees linked federal design with rights, minority and tribal safeguards. The Kripalani, H.C. Mookherjee, Gopinath Bardoloi and A.V. Thakkar subcommittees deepened issue-specific scrutiny.

This architecture separated four functions. First, subject committees gathered evidence and narrowed choices. Second, B.N. Rau supplied comparative advice and an initial draft. Third, Ambedkar's Drafting Committee reconciled reports into coherent legal text. Fourth, the plenary Assembly publicly debated, amended and authorised that text. The movement between smaller committees, party forums, informal negotiation and plenary sessions reduced deadlock without eliminating dissent.

The mechanism strengthened deliberation in three ways: expertise improved precision; smaller forums made bargaining manageable; and plenary readings preserved public reasons and final authority. The cost was possible technocratic insulation and opacity in pre-plenary settlements, intensified by Congress dominance and unequal representation. Committee work was legitimate because it remained subordinate to the Assembly.

Thus, specialisation did not replace deliberation; it organised it. The durability of the final settlement arose from expert preparation joined to political negotiation and public constitutional authorisation.

Why this earns marks: It names committees, explains the production chain, analyses benefits and retains institutional limitations.

How to improve this answer: Name the Drafting Committee's 141 sitting days or the Assembly's 114 draft-debate days as one quantified proof that committee specialisation remained connected to plenary scrutiny.

Original Q5 - 20 marks / 250 words

Question: Indian constitution-making represented both continuity and rupture. Discuss. Answer in 250 words.

Demand: Analyse both sides through institutions, legitimacy and social purpose.

Model answer: Indian constitution-making was a controlled constitutional transformation: it retained machinery necessary for governability while replacing colonial legitimacy with republican popular sovereignty.

Continuity: Administrative offices, legislative lists, public services, courts and drafting techniques drew heavily on the Government of India Act 1935. A strong executive, emergency instruments and centralising devices reflected inherited state-capacity concerns intensified by Partition and integration. Staged commencement under Article 394 and repeal under Article 395 also show a legally managed transition rather than an institutional vacuum.

Rupture: The Objectives Resolution located authority in the people rather than Westminster. The Constitution created a sovereign democratic republic, parliamentary responsibility under a supreme written Constitution, enforceable Fundamental Rights, judicial review and Directive Principles. Universal adult franchise established equal political membership from the beginning, far beyond the restricted electorate that indirectly produced the Assembly. Equality and the abolition of untouchability converted political independence into a project of social transformation.

Synthesis: Borrowed and inherited devices changed function when placed under popular sovereignty, rights and electoral accountability. Federal lists no longer served imperial supervision alone; they structured a constitutional Union. Bureaucratic continuity enabled day-one administration, while democratic rupture changed to whom that administration was answerable.

The transformation was incomplete. Inherited institutions carried centralising and bureaucratic habits, and constitutional promises did not instantly erase social hierarchy. Yet a complete administrative reset would have endangered governability.

The founding achievement was therefore controlled rupture: enough continuity to preserve state capacity, but enough democratic and social transformation to change the source, limits and purposes of public power.

Why this earns marks: It uses constitutional provisions and institutional examples, explains altered function, qualifies transformation and answers both sides of the directive.

How to improve this answer: Pair one inherited device with its transformed constitutional purpose—for example, legislative lists under imperial control versus lists under popular sovereignty and judicially enforceable federalism.

Original Q6 - 20 marks / 250 words

Question: Evaluate the legitimacy of the Constituent Assembly as India's constitution-making body. Answer in 250 words.

Demand: Build a criterion-based evaluation rather than praise or rejection.

Model answer: The Assembly's legitimacy was neither a pure popular mandate nor a British gift. It was progressively built through legal sovereignty, plural deliberation and democratic constitutional output.

Origin deficit: The Cabinet Mission designed a 389-member body. Provincial representatives were indirectly elected through restricted-franchise provincial assemblies and princely rulers nominated their representatives. Congress won 208 of 296 electoral seats; the League boycott and Partition reduced plural participation. These facts weaken a claim of full electoral representativeness.

Sovereignty: The objection that the Assembly was legally subordinate had force at its first sitting. The Indian Independence Act 1947 then empowered it to frame any Constitution, repeal British statutes and legislate for the Dominion. Sovereignty must therefore be periodised.

Deliberative legitimacy: Major committees, Rau's advice, Drafting Committee integration and clause-by-clause plenary readings created reasoned institutional authority. Women, Scheduled Caste, tribal and minority members participated substantively, though not proportionately.

Democratic output: The Constitution located authority in the people, established universal adult franchise, rights, representative government and constitutional remedies. The Assembly thereby created a more democratic polity than the electoral system that created it.

Residual limits: Congress agenda control, lawyer-politician predominance, social imbalance, princely nomination and the League's absence cannot be erased by later success. Deliberation is not a substitute for direct election; it is an additional source of legitimacy under the constraints of 1946-49.

The Assembly was thus imperfect but not illegitimate. It earned qualified founding legitimacy by converting a constrained origin into a sovereign, deliberative and universally democratic constitutional order.

Why this earns marks: It evaluates through explicit criteria, uses named institutional evidence, concedes residual deficits and reaches a graded verdict.

How to improve this answer: Use a compact criterion table-origin, process, output, residual limits-and attach one exact figure or institution to each row before reaching the graded verdict.